

24STCV33256 24STCV33256

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-06-23

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Case Number: 24STCV33256 Hearing Date: June 23, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: June 23, 2026 TRIAL DATE: Mar. 30, 2027

CASE: Liubou Partnaya v. Vladislav Chizhevsky

et al.

CASE

NO.: 24STCV33256

MOTION FOR ISSUE, EVIDENTIARY

AND MONETARY SANCTIONS

MOVING

PARTY: Plaintiff Liubou Partnaya

RESPONDING

PARTY(S): Defendants

Vladislav Chizhevsky, Felix Chizhevsky and Yelena Kamenir

TENTATIVE RULING:

Plaintiff's

motion to impose issue, evidentiary and monetary sanctions based on an alleged

spoliation of evidence is DENIED.

Moving Party to give notice.

DISCUSSION:

Plaintiff seeks evidentiary, issue, or monetary

sanctions based on what Plaintiff claims was deliberate spoliation of evidence. The motion must be denied. Plaintiff has not shown that any evidence was

deliberately spoiled or not produced.

Plaintiff's main concern is with a

cellular phone held by Defendant Felix Chizhevsky, apparently used to send text

messages with the Plaintiff (the Plaintiff produced, separately, several such

messages). The record evidence indicates

that before Felix Chizhevsky was a party to this action (and before a

separate subpoena was served upon him) he exchanged an older cellular phone for

a newer one, after copying the information from the old phone to a new

one. That is not deliberate destruction

of evidence. Mr. Chizhevsky was not a

party to the action at this time he exchanged the phone. Nor is there evidence indicating that he knew

or should have known of some broader duty to preserve evidence at that time (e.g.,

no duty to preserve evidence letter had been sent). Nothing in the record indicates that the phone

was exchanged for any reason other than obtaining a new phone. Nor is there any specific evidence of any

particularly relevant evidence that was not produced. Notably, Plaintiff both has and has produced

her own text messages with Mr. Chizhevsky.

In these circumstances, the Court

cannot award sanctions. It certainly

cannot impose issue or evidentiary sanctions.

Such sanctions are for egregious and intentional violations, generally

following a violation of a court order.

Here, the Court sees no violation at all.

Plaintiff and Defendants makes

reference to a few other documents that she claims should have been produced

beyond the phone, but, because of the manner in which the motion has been

presented to the Court, the Court cannot tell what documents are at issue. The

moving and reply papers also contain a host of other merits arguments, all of

which appear entirely irrelevant to the sanctions motion at issue. Based on this record, the Court certainly

cannot award monetary, issue or evidentiary sanctions.

Accordingly, the motion is denied, as

are all accompanying requests for sanctions.

CONCLUSION:

Plaintiff's

motion to impose issue, evidentiary and monetary sanctions based on an alleged

spoliation of evidence is DENIED.

Moving Party to give notice.

IT IS

SO ORDERED.

Dated: June 23, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you

submit on a tentative ruling the court will still conduct a hearing if any

party appears. By submitting on the tentative you have, in essence, waived your

right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.